

Complaint Report (CCRB)

CCRB Case No :	202004427	C/V Report Date :	Tue, 06/16/2020 01:06 PM
Complaint Type :	CCRB	Investigator :	William Rasenberger
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Tue, 06/16/2020 01:06 PM	Mode :	E-mail
Incident Date(s) :	Saturday, 05/30/2020 5:00 PM		
Place of Occurrence:	[REDACTED]	Precinct:	77
Location :		Boro:	Brooklyn
Reason for Initial Contact :	Parade/special event		
Charges:	No arrest made or summons issued		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Comp/Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Thomas Dicamillo	Subject Officer	948887	White	078	Threat of force (verbal or physical) - (A) Unfounded
POM	Alen Hodzic	Subject Officer	960672	White	078	Threat of force (verbal or physical) - (A) Unfounded
POF	Monet Allen	Witness Officer	966933	Hispanic	078	
POM	Daniel Alvarez	Witness Officer	964372	Hispanic	078	
POM	Aron Baksh	Witness Officer	948639	Asian	078	
POF	Inna Miroshnyk	Witness Officer	963654	White	078	

Initial Complaint Narrative

The following is from an email § 87(2)(b) sent to SI Matt Chaves regarding what he witnessed on May 30, 2020. § 87(2)(b) joined a march of 5000-7000 people at the intersection of Parkside Ave and Flatbush Ave at approximately 4:00pm, and that eventually ended up near Union Square in Manhattan around 10:30pm. I witnessed no sign of property destruction or violence on behalf of the protesters, until after there had been several aggressive and violent engagements by the police. The first dangerous use of force that I witnessed occurred at the intersection of Tilden Ave and Bedford Ave. I do not know the time of the incident, but my guess is that it was between 4:30 and 5:00pm. The police had halted the front of the march (presumably at the intersection of Flatbush and Bedford), and I was stuck in the middle. The police helicopter that had been monitoring the march dropped dangerously close to the crowd and made erratic movements to create an environment of fear among the protesters. It is difficult to estimate the altitude, but my guess is that the helicopter was at some points parallel to the roofs of the surrounding brownstones. It was able to descend in this manner without risk of hitting buildings because it was hovering over the large parking lot on the SW corner of the intersection. I do not know what the official justification or guidelines are regarding NYPD aviation support, but from my standpoint it seemed that the purpose was to intimidate protesters – or at the very least this was the effect. The helicopter made several passes that struck me as dangerously low and it kicked up substantial dust and particulate, some of which got in my eyes, and I would assume the eyes of others. It was effective as a means of intimidation, since a number of people left the protest to get away. This video was not taken by me and does not capture the behavior I am discussing, but it captures the intersection I was at and the specific helicopter that was used. The part of the march that I was a part of circled through various streets in Flatbush before returning to the origin point at the intersection of Ocean Ave and Parkside Ave. After kneeling for perhaps 30 minutes the march continued north on Ocean Ave and continued north on Flatbush Ave towards Grand Army Plaza. As I was approaching Grand Army Plaza on Flatbush Ave, a police cruiser drove recklessly through the crowd. When the cruiser was approximately parallel to the Flatbush Ave wing of the Brooklyn Public Library, I witnessed several people scatter to avoid being hit, and one person's bike was struck by the cruiser. I do not believe that the person, who was a white female, approximately 130lbs and 5'5" was on her bike at the time of impact, but she stated that her bike had been damaged. This police action struck me as dangerous and unnecessary, given that there was no immediate reason for the police to drive into the crowd from behind. Traffic along Flatbush between Ocean Ave and Grand Army Plaza had been redirected by the protesters. The police cruiser chose to accelerate into the crowd from behind, choosing to place the driver and other officers in a tense situation that was dangerous for them and the protesters. I do not know the time of this incident, but it preceded by approximately 20 minutes the widely circulated video of two police cruisers accelerating into a crowd on Flatbush Ave between Sterling St and Bergen St (I do not remember the precise location). The police used a similar tactic several more times in the following 30 minutes as the march continued north on Flatbush Ave between St. Johns Pl and Bergen St. In one instance, three police vehicles entered the crowd and accelerated north on Flatbush Ave through the protesters creating an extremely dangerous situation. Here is a video of the incident that was not taken by me. The other incident in which police officers chose to accelerate into the crowd, and which has undoubtedly already been brought to your attention is this one. I do not believe I am in either of the videos, and from my vantage point on the ground it is impossible for me to say whether the specific cars that are shown are the ones that passed dangerously close to me as I marched north on Flatbush Ave. What I can say is that the drivers of these vehicles chose to enter an otherwise peaceful demonstration at speeds that felt threatening and dangerous to myself and others. It is difficult to conceive of a reason for the officers to put themselves in a situation like this unless their intention was to antagonize, scare, or escalate tensions with the demonstrators. At no point did the police opt to use sufficient numbers to block the march, even though they had 20 minutes to arrange a blockade while we marched along the empty stretch of Flatbush between Ocean Ave and Grand Army Plaza. Instead they opted to sporadically drive dangerously into the protest from behind and from the sides. These encounters led to a markedly escalated and more disorderly march as the protesters proceeded north on Flatbush through downtown Brooklyn. This protest then proceeded peacefully over the Manhattan Bridge and north along Allen St, opting to avoid a confrontation with riot police that had assembled at the intersection of Bowery and Canal. When the march reached Houston, it jogged west one block before continuing north on Bowery. It was at this point that several dozen bicycle police moved aggressively to try and cut the march in half at Houston and Bowery. I was not at the intersection, and therefore cannot testify as to what occurred, but at some point the protesters panicked in response to the police action and began running north on Bowery. The tenor of the protest became increasingly confrontational from that moment on and our subsequent encounters with police were marked by violent arrests and destruction of public property. What I can attest to, is that such destruction only occurred after several hours of an otherwise peaceful march being aggressively harried by the police for no apparent motive.

Witness
